

NCRWC AND WORKING OF THE CONSTITUTION

NCRWC IDENTITY, MANDATE AND – CONSULTATION AND INSTITUTIONAL IDENTITY – WORKING OF THE CONSTITUTION – RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS – IMPLEMENTATION AUDIT: EXACT, MODIFIED – ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE Pending user review active generation g2 repaired in place for answer-line and visual-boundary quality all prior artifacts unchanged

CORE BEFORE EXTRA prior artefacts unchanged exact same master drives poster and tiles

STAGE 00NCRWC IDENTITY, MANDATE AND CONSTITUTIONAL BOUNDARY

NCRWC IDENTITY, MANDATE AND CONSTITUTIONAL BOUNDARY

ROOT QUESTION

HOW CAN CONSTITUTIONAL PERFORMANCE BE REVIEWED WITHOUT CLAIMING CONSTITUENT

2000 GOVERNMENT RESOLUTION

TEMPORARY EXECUTIVE ADVISORY COMMISSION.

JUSTICE M.N. VENKATACHALIAH

11 MEMBERS

REPORT SUBMITTED IN 2002.

CONSTITUTIONAL BASIS / ARTICLE

ROOT QUESTION

How can constitutional performance be reviewed without claiming constituent power?

2000 Government resolution – temporary executive advisory commission.

POWER / PROCEDURE

Justice M.N. Venkatachaliah – chair

11 members

report submitted in 2002.

CHECK / LIMIT

MANDATE review fifty years of working – effective governance + socio-economic development.

BOUNDARY parliamentary democracy + basic structure preserved.

VERDICT review of working != rewriting the Constitution.

FEDERAL / RIGHTS IMPACT

Justice M.N. Venkatachaliah – chair

ANSWER-GRABBING LINE – WRITE/ADAPT IN THE EXAM: The NCRWC reviewed constitutional working within parliamentary democracy and basic-structure limits, making it an advisory reform commission rather than a constituent assembly.

STAGE 01CONSULTATION AND INSTITUTIONAL IDENTITY FIREWALL

CONSULTATION AND INSTITUTIONAL IDENTITY FIREWALL

CONSULTATION PAPERS + EXPERT STUDIES + PUBLIC RESPONSES +

ADVISORY REPORT.

CONSTITUENT ASSEMBLY

FRAMED CONSTITUTION.

PARLIAMENT/ART 368

AMENDS THROUGH CONSTITUTIONAL PROCEDURE

LAW COMMISSION

CONSTITUTIONAL BASIS / ARTICLE

CONSULTATION papers + expert studies + public responses + thematic deliberation – advisory report.

CONSTITUENT ASSEMBLY – framed Constitution.

POWER / PROCEDURE

PARLIAMENT/ART 368 – amends through constitutional procedure.

LAW COMMISSION – law-reform reports.

CHECK / LIMIT

SARKARIA/PUNCHHI – Centre-State review.

NCRCW – comprehensive working review, no constituent authority.

FEDERAL / RIGHTS IMPACT

TRAP expertise and consultation create persuasion, not legal force.

CONSULTATION papers + expert studies + public responses + thematic deliberation – advisory report.

CONSTITUTIONAL BASIS / ARTICLE

CONSULTATION papers + expert studies + public responses + thematic deliberation – advisory report.

CONSTITUENT ASSEMBLY – framed Constitution.

POWER / PROCEDURE

PARLIAMENT/ART 368 – amends through constitutional procedure.

LAW COMMISSION – law-reform reports.

CHECK / LIMIT

SARKARIA/PUNCHHI – Centre-State review.

NCRCW – comprehensive working review, no constituent authority.

FEDERAL / RIGHTS IMPACT

TRAP expertise and consultation create persuasion, not legal force.

CONSULTATION papers + expert studies + public responses + thematic deliberation – advisory report.

ANSWER-GRABBING LINE – WRITE/ADAPT IN THE EXAM: Composition caution: Membership gave the Commission legal, parliamentary, administrative and public-policy experience, but expertise did not convert its report into law or constituent power.

STAGE 02WORKING OF THE CONSTITUTION: TEXT TO LIVED PERFORMANCE

WORKING OF THE CONSTITUTION

TEXT TO LIVED PERFORMANCE

ARTICLES + PARTS + SCHEDULES

PARLIAMENT + EXECUTIVE + COURTS + FEDERAL UNITS +

PRACTICE CONVENTIONS + PARTIES + ADMINISTRATION + POLITICAL INCENTIVES

OUTCOMES RIGHTS + ACCOUNTABILITY + DELIBERATION + FEDERAL TRUST

KESAVANANDA BHARATI (1973)

STRUCTURAL BOUNDARY.

Articles + Parts + Schedules

Parliament + executive + courts + federal units + bodies

PRACTICE conventions + parties + administration + political incentives

OUTCOMES rights + accountability + deliberation + federal trust + remedies.

CONSTITUTIONAL BASIS / ARTICLE

Articles + Parts + Schedules

Parliament + executive + courts + federal units + bodies

POWER / PROCEDURE

PRACTICE conventions + parties + administration + political incentives

OUTCOMES rights + accountability + deliberation + federal trust + remedies.

CHECK / LIMIT

Kesavananda Bharati (1973) – structural boundary.

Minerva Mills (1980) – limited amendment + rights-DPSP harmony.

FEDERAL / RIGHTS IMPACT

Articles + Parts + Schedules

Parliament + executive + courts + federal units + bodies

ANSWER-GRABBING LINE – WRITE/ADAPT IN THE EXAM: Constitutional working converts text into restrained power, effective rights, accountable institutions and cooperative practice, so formal compliance alone cannot establish constitutional success.

STAGE 03RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS CONTAMINATION

RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS CONTAMINATION

DUTIES NEW RIGHTS, STRONGER IMPLEMENTATION AND PROPOSED DUTIES

PARTIES CRIMINALISATION, FINANCE, ECI SELECTION, PARTY LAW AND ANTI-DEFECTION.

ADMINISTRATION SITTINGS, COMMITTEES, PRIVILEGES, MINISTRY SIZE, CIVIL SERVICES AND

LOCAL GOVERNMENT APPOINTMENTS, ACCESS, GOVERNOR, ART 356, COUNCILS AND

STATUS EVERY NODE

NCRCW RECOMMENDATION UNTIL SEPARATELY ENACTED.

CONSTITUTIONAL BASIS / ARTICLE

RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.

ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.

POWER / PROCEDURE

PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.

JUDICIARY / FEDERALISM / LOCAL GOVERNMENT appointments, access, Governor, Art 356, councils and devolution.

CHECK / LIMIT

STATUS every node = NCRWC recommendation until separately enacted.

RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.

FEDERAL / RIGHTS IMPACT

ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.

PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.

CONSTITUTIONAL BASIS / ARTICLE

RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.

ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.

POWER / PROCEDURE

PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.

JUDICIARY / FEDERALISM / LOCAL GOVERNMENT appointments, access, Governor, Art 356, councils and devolution.

CHECK / LIMIT

STATUS every node = NCRWC recommendation until separately enacted.

RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.

FEDERAL / RIGHTS IMPACT

ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.

PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.

ANSWER-GRABBING LINE – WRITE/ADAPT IN THE EXAM: The NCRWC examined modern governance across rights, institutions, federalism and development, but its 249 recommendations required different constitutional, legislative or executive routes.

STAGE 04IMPLEMENTATION AUDIT: EXACT, MODIFIED, SIMILAR OR PENDING

IMPLEMENTATION AUDIT

EXACT, MODIFIED, SIMILAR OR PENDING

LATER INSTRUMENT

LEGAL EFFECT

10% MINISTRY CEILING

91ST AMENDMENT (2003) USES 15%

MODIFIED RELATED REFORM, NOT EXACT ADOPTION.

JUDICIAL COMMISSION

PROPOSAL –> LATER INSTRUMENT –> WORDING –> LEGAL EFFECT –> VERDICT

10% ministry ceiling

91st Amendment (2003) uses 15% – modified related reform, not exact adoption.

Judicial commission

CONSTITUTIONAL BASIS / ARTICLE

PROPOSAL –> LATER INSTRUMENT –> WORDING –> LEGAL EFFECT –> VERDICT

10% ministry ceiling

91st Amendment (2003) uses 15% – modified related reform, not exact adoption.

POWER / PROCEDURE

Judicial commission

NIAC enacted 2014, invalidated 2015 – not current NCRWC design.

party law + narrow whip

CHECK / LIMIT

no comprehensive enactment – substantially pending.

disaster to Concurrent List

Disaster Management Act 2005, no List transfer – statutory response, not adoption.

FEDERAL / RIGHTS IMPACT

RULE chronology + similarity != proven implementation.

ANSWER-GRABBING LINE – WRITE/ADAPT IN THE EXAM: Implementation must match the exact recommendation to a later legal instrument and result, because thematic similarity does not prove formal adoption.

STAGE 05ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE PRACTICE

ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE PRACTICE

ACCOUNTABILITY ELECTIONS

JUDICIAL REVIEW.

LEGISLATURE SITTING TIME

DELEGATED LAW

FINANCIAL CONTROL.

FEDERAL PRACTICE CONSULTATION

GOVERNOR RESTRAINT

ACCOUNTABILITY elections

Judicial review.

LEGISLATURE sitting time – scrutiny – delegated law – opposition – financial control.

FEDERAL PRACTICE consultation – councils – Governor restraint – floor test – negotiated implementation.

CONSTITUTIONAL BASIS / ARTICLE

ACCOUNTABILITY elections

Judicial review.

POWER / PROCEDURE

LEGISLATURE sitting time –> scrutiny –> delegated law –> opposition –> financial control.

FEDERAL PRACTICE consultation –> councils –> Governor restraint –> floor test –> negotiated implementation.

CHECK / LIMIT

S.R. Bommai (1994) – federal and secular structural enforcement.

TRAP majority strength or coalition form does not itself prove good constitutional working.

FEDERAL / RIGHTS IMPACT

ACCOUNTABILITY elections

Judicial review.

ANSWER-GRABBING LINE – WRITE/ADAPT IN THE EXAM: Constitutional accountability combines electoral, legal, financial and administrative controls, while legislative quality depends on time, committees, scrutiny and public reasons.

STAGE 06CONSTITUTIONAL MORALITY AND RIGHTS ENFORCEMENT

CONSTITUTIONAL MORALITY AND RIGHTS ENFORCEMENT

CONSTITUTIONAL MORALITY TEXT + PROCEDURE + EQUAL CITIZENSHIP +

K.S. PUTTASWAMY (2017) PRIVACY + DIGNITY IN MODERN GOVERNANCE.

NAVTEJ SINGH JOHAR V. UNION OF INDIA (2018) CONSTITUTIONAL

RIGHTS WORKING GUARANTEE

AFFORDABLE REMEDY

PUBLIC JUSTIFICATION.

LIMIT MORALITY IS NOT PERSONAL PREFERENCE, LATER CASES ARE

CONSTITUTIONAL MORALITY text + procedure + equal citizenship + institutional role restraint.

K.S. Puttaswamy (2017) privacy + dignity in modern governance.

Navtej Singh Johar v. Union of India (2018) constitutional morality + transformative rights.

RIGHTS WORKING guarantee – institution – affordable remedy – compliance – public justification.

CONSTITUTIONAL BASIS / ARTICLE

CONSTITUTIONAL MORALITY text + procedure + equal citizenship + institutional role restraint.

K.S. Puttaswamy (2017) privacy + dignity in modern governance.

POWER / PROCEDURE

Navtej Singh Johar v. Union of India (2018) constitutional morality + transformative rights.

RIGHTS WORKING guarantee – institution – affordable remedy – compliance – public justification.

CHECK / LIMIT

LIMIT morality is not personal preference; later cases are not NCRWC implementation evidence.

CONSTITUTIONAL MORALITY text + procedure + equal citizenship + institutional role restraint.

FEDERAL / RIGHTS IMPACT

K.S. Puttaswamy (2017) privacy + dignity in modern governance.

Navtej Singh Johar v. Union of India (2018) constitutional morality + transformative rights.

ANSWER-GRABBING LINE – WRITE/ADAPT IN THE EXAM: NCRWC proposals on rights, property, Directive Principles and duties remain recommendations whose current status must be tested against later constitutional text and law.

STAGE 07REFORM-METHOD LADDER AND FEASIBILITY TEST

REFORM-METHOD LADDER AND FEASIBILITY TEST

DIAGNOSE TEXT GAP? CONVENTION FAILURE? CAPACITY DEFICIT? INCENTIVE FAILURE?

PRACTICE/CONVENTION REPAIR EXECUTIVE RULE OR CAPACITY ORDINARY LEGISLATION

ARTICLE 368 AMENDMENT

TEST BASIC STRUCTURE + RIGHTS + FEDERALISM + DEMOCRATIC

VERDICT USE THE LEAST LEGALLY SUFFICIENT AND INSTITUTIONALLY WORKABLE

DIAGNOSE text gap? convention failure? capacity deficit? incentive failure? remedy gap?

practice/convention repair executive rule or capacity ordinary legislation

Article 368 amendment

TEST basic structure + rights + federalism + democratic legitimacy finance + implementation + review.

CONSTITUTIONAL BASIS / ARTICLE

DIAGNOSE text gap? convention failure? capacity deficit? incentive failure? remedy gap?

practice/convention repair executive rule or capacity ordinary legislation

POWER / PROCEDURE

Article 368 amendment

TEST basic structure + rights + federalism + democratic legitimacy finance + implementation + review.

CHECK / LIMIT

VERDICT use the least legally sufficient and institutionally workable route.

DIAGNOSE text gap? convention failure? capacity deficit? incentive failure? remedy gap?

FEDERAL / RIGHTS IMPACT

practice/convention repair executive rule or capacity ordinary legislation

Article 368 amendment

ANSWER-GRABBING LINE – WRITE/ADAPT IN THE EXAM: Reform should follow the diagnosed failure through administrative, statutory or constitutional routes, using amendment only where text rather than implementation is deficient.

STAGE 08UPSC SYNTHESIS: COMMISSION REPORT TO CONSTITUTIONAL ANSWER

UPSC SYNTHESIS

COMMISSION REPORT TO CONSTITUTIONAL ANSWER

PRELIMS FIREWALL

2000 RESOLUTION

11 MEMBERS

2002 REPORT ADVISORY

REVIEW, NOT REWRITE

RECOMMENDATIONS, NOT LAW.

PRELIMS FIREWALL

2000 resolution

11 members

2002 report advisory

review, not rewrite

CONSTITUTIONAL BASIS / ARTICLE

PRELIMS FIREWALL

2000 resolution

11 members

2002 report advisory

POWER / PROCEDURE

review, not rewrite

recommendations, not law.

MAINS SPINE identity –> mandate –> working beyond text –> recommendation clusters

implementation audit –> morality/accountability/federal practice –> reform ladder.

CHECK / LIMIT

PVQ ROUTE constitutional morality

electoral reform

judicial accountability

basic structure.

FEDERAL / RIGHTS IMPACT

NCRCW is a diagnostic reform menu subject to constitutional route and present-law verification.

ANSWER-GRABBING LINE – WRITE/ADAPT IN THE EXAM: NCRWC proposals must remain distinct from later law, judicial doctrine and convention, especially on rights, ministry size, appointments and the Model Code.

EXTRASUBORDINATE ENRICHMENT – ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

USE ONLY AFTER THE COMPLETE CORE.

RECOMMENDATIONS REMAIN NON-BINDING UNLESS A LATER LEGAL INSTRUMENT IS

INSTITUTIONAL-PERFORMANCE FRAMEWORK CONSTITUTIONAL WORKING CAN BE EVALUATED THROUGH FOUR

EVIDENCE ROUTE

IS THE ACTOR CONSTITUTIONALLY EMPOWERED?

TEXT, STATUTE, RULE

ARE RIGHTS, FEDERALISM AND ROLE LIMITS RESPECTED?

OPTIONAL DOCTRINE / CASE

Use only after the complete Core.

Recommendations remain non-binding unless a later legal instrument is separately identified.

Institutional-performance framework Constitutional working can be evaluated through four linked capacities: | Capacity | Question | Evidence route

||-|-||-|-||-|-|| Authorisation | Is the actor constitutionally empowered?

ADVANCED LIMIT

text, statute, rule | Restraint | Are rights, federalism and role limits respected?

reasons, review, conventions | Delivery | Can the institution convert authority into timely outcomes?

staffing, procedure, finance | Correction | Can failure be exposed and remedied?

Parliament, audit, courts, elections | The framework prevents two opposite errors: assuming that valid text guarantees good government,

COMPARATIVE NUANCE

and assuming that performance failure always requires constitutional amendment.

Reform sequencing and implementation causation A commission recommendation should be coded as: 1.

functionally similar later reform without proven attribution: 4.

Judicial development in a related field: 5.

OPTIONAL STATUS – This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.